

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hilary Hudson	Team: Team # 4	CCRB Case #: 200615833	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 11/27/2006 10:30 PM	Location of Incident: 75th precinct stationhouse	Precinct: 75	18 Mo. SOL 5/27/2008	EO SOL 5/27/2008	
Date/Time CV Reported Mon, 11/27/2006 11:13 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 11/27/2006 11:13 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Javier Munoz	10519	935373	075 PCT
2. POM Jason Caputo	27878	935156	075 PCT
3. POM Eliseo Morales	05396	902046	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Barbara Fischer	01503	920284	075 PCT
2. POF Maria Catalano	20939	928044	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Javier Munoz	Discourtesy: PO Javier Munoz spoke rudely to § 87(2)(b)	
B.POM Jason Caputo	Off. Language: PO Jason Caputo made remarks to § 87(2)(b) based upon religion.	
C.POM Jason Caputo	Discourtesy: PO Jason Caputo spoke rudely to § 87(2)(b)	
D.POM Javier Munoz	Abuse: PO Javier Munoz threatened to arrest § 87(2)(b)	
E.POM Javier Munoz	Off. Language: PO Javier Munoz made remarks to § 87(2)(b) based upon religion.	
F.POM Eliseo Morales	Off. Language: PO Eliseo Morales made remarks to § 87(2)(b) based upon religion.	
G.POM Eliseo Morales	Force: PO Eliseo Morales used physical force against § 87(2)(b)	
H.POM Eliseo Morales	Abuse: PO Eliseo Morales frisked § 87(2)(b)	
I.POM Eliseo Morales	Abuse: PO Eliseo Morales searched § 87(2)(b)	
J.POM Eliseo Morales	Abuse: PO Eliseo Morales threatened to arrest § 87(2)(b)	

Synopsis

At approximately 10:30 PM on November 27, 2006, § 87(2)(b) alleged that when he went to the 75th Precinct stationhouse to file a complaint against a tenant in a building he manages, PO Javier Munoz told him to “watch [his] fucking mouth” [Allegation A]. He alleged that PO Jason Caputo told him to “get the fuck out of here, you Jewish fucking slumlord” and asked him, “What kind of animal are you?” [Allegations B-C]. § 87(2)(b) then alleged that PO Munoz threatened to arrest him [Allegation D] and called him a “dirty fucking Jewish landlord/slumlord” [Allegation E]. He alleged that PO Eliseo Morales called him a “Jewish ass licking person” and a “Jewish prick/fuck/landlord” [Allegation F] before shoving him against a wall [Allegation G]. § 87(2)(b) then alleged that PO Morales frisked [Allegation H] and searched [Allegation I] him before telling him that he would be arrested if he returned to the stationhouse [Allegation J]. § 87(2)(b) was issued a summons § 87(2)(a) 160.50

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) contacted the CCRB on November 27, 2006, to file his complaint. He also contacted the Internal Affairs Bureau on November 29, 2006, to file a complaint about the incident. The IAB log was transferred to the CCRB on December 1, 2006 (Enclosure 6A-C). § 87(2)(b) provided a telephone statement on November 29, 2006 (Enclosure 7), was interviewed in person at the CCRB on December 6, 2006 (Enclosure 8A-D), and viewed a photo array at the CCRB on March 22, 2007 (Enclosure 9A-G). § 87(2)(g) Also, § 87(2)(b) made many references to the problems he has with his tenants since March 2006 and stated his obvious displeasure with the manner in which the NYPD has handled the issues. During his telephone statement on November 29, 2006, § 87(2)(b) stated that he and tenant § 87(2)(b) were having a dispute on either March 10 or March 15, 2007 and PO Caputo responded to the scene, allegedly calling § 87(2)(b) a “dirty landlord.” Also, when § 87(2)(b) and § 87(2)(b) were disputing on May 25, 2006, PO Caputo and PO Munoz responded to the building, called him “a dirty Jewish slumlord,” and PO Caputo told him, “You’re going to jail tonight, you dirty landlord. You’re going to get your lesson and spend the longest time in jail.” He also claimed that PO Munoz threatened to throw him out of the precinct with his “own bare hands.” § 87(2)(b) never made those allegations during his formal CCRB interview. He is a § 87(2)(b) white male, five feet, eight inches tall, one hundred and eighty-five pounds, and has brown hair and blue eyes. § 87(2)(b)

When interviewed at the CCRB, § 87(2)(b) stated that on November 27, 2006, at approximately 10:30 PM, he went to the 75th Precinct stationhouse to file a complaint against § 87(2)(b), the tenant in apartment § 87(2)(a) Gen.Mun. §50-H(3) in Brooklyn, § 87(2)(b). The complaint was in regards to an incident that occurred on November 24, 2006, when § 87(2)(b) broke banisters in the apartment building and threatened § 87(2)(b) with a knife. Officers were supposed to contact § 87(2)(b) regarding the incident but had not done so by November 27, 2006, which prompted § 87(2)(b) to go to the 75th Precinct stationhouse in order to make the complaint.

No other civilians were at the stationhouse. While § 87(2)(b) was speaking to an unidentified female officer, the female desk sergeant asked § 87(2)(b) “Weren’t you once arrested?” On March 22, 2007, § 87(2)(b) viewed a photographic array containing service photos of four officers from the 75th Precinct, and positively identified the sergeant as Sgt. Barbara Fischer. § 87(2)(b) told Sgt. Fischer in a

quiet voice, “This has nothing to do with why I’m here now.” According to § 87(2)(b) PO Jason Caputo and PO Javier Munoz were also at the stationhouse. He knew PO Caputo and PO Munoz because they arrested him in May 2006 for criminal mischief and third degree menacing, and he identified them during the March 22, 2007 photo array. PO Munoz told § 87(2)(b) to leave the precinct, but § 87(2)(b) refused and stated that he was there to file a complaint. PO Munoz told § 87(2)(b) that he made a “joke” out of Sgt. Fischer, but he later stated during the interview that it was a young white male officer said that. During his telephone statement on November 29, 2006, § 87(2)(b) stated that PO Munoz told him to talk to the sergeant nicely or else he would throw him out of the precinct with his “own bare hands.” During the March 22, 2007 photo array, § 87(2)(b) said that PO Munoz told him to “watch [his] fucking mouth” and that PO Caputo told him, “Get the fuck out of here, you Jewish fucking slumlord.” He also stated that PO Caputo told him, “What kind of animal are you? You’re treating [a tenant] like an animal. You’re going to get paid back.”

Officers then pushed § 87(2)(b) into the stationhouse lobby, but he stated earlier in the interview that he was already in the lobby. PO Munoz told § 87(2)(b) “You got what you deserved that night (referencing § 87(2)(b)’s May 2006 arrest) and I’m going to get you again.” PO Munoz called him a “Dirty fucking Jewish landlord/slumlord.” Then PO Caputo, PO Munoz, PO Eliseo Morales, a “Sergeant Dumaro” who was wearing eyeglass (identified during the March 22, 2007 photo array as PO Eliseo Morales), and a white male officer in his early 20s walked closer to § 87(2)(b) as if to force him out of the stationhouse. No force was used to remove § 87(2)(b) from the stationhouse. However, when he contacted IAB on November 29, 2006, he claimed that PO Munoz threw him out of the stationhouse. Then during his November 29, 2006 telephone statement, he stated that five other officers, including PO Morales, a sergeant with glasses, a tall young white male officer, and a female officer, told § 87(2)(b) to wait outside, made anti-Semitic remarks towards him, and physically threw him out of the precinct.

PO Morales told § 87(2)(b) “You better get out of here you Jewish ass licking person, you Jewish prick, fuck, and landlord.” However, § 87(2)(b) stated to IAB on November 29, 2006, that PO Morales called him a “Jewish ass kisser.” Additionally, PO Morales threatened to give § 87(2)(b) a summons if he did not leave immediately. As § 87(2)(b) was walking away, PO Morales shoved § 87(2)(b) “against the wall” and asked for his identification. § 87(2)(b) asked, “What does that have to do with why I’m being thrown out of the precinct?” PO Morales told § 87(2)(b) “If you don’t give me your ID, you’re going into jail tonight and I’m going to make sure you stay the longest.” PO Morales then frisked § 87(2)(b) and removed § 87(2)(b)’s passport from his left pants pocket. When § 87(2)(b) initially filed his complaint, he said that officers strip-searched him. PO Morales told § 87(2)(b) that he was not going to let § 87(2)(b) make his complaint. However, § 87(2)(b) said that was when PO Morales placed him against the wall. The white male officer in his early 20s told § 87(2)(b) “You’re never going to come back to this precinct to file another complaint again. It’s private property, next time I see your face over here you’re going to go to jail.” However, when he initially filed the complaint he stated that officers told him “never to come back again” to file a complaint or else he would be arrested. During his March 22, 2007 photo array, § 87(2)(b) stated that PO Morales told him “never to come back to the precinct again” or else he would be arrested. PO Morales issued a summons to § 87(2)(b) sometime during the interaction and § 87(2)(b) left after receiving the summons.

Results of Investigation

Officer Identification

Roll call from the 75th Precinct indicated that PO Eliseo Morales, PO Javier Munoz, PO Jason Caputo, Sgt. Barbara Fischer, and PO Maria Catalano worked tour 3 on November 27, 2006. PO Morales was the assistant desk officer, Sgt. Fischer was the desk sergeant, PO Catalano was the telephone switchboard operator, and both PO Munoz and PO Caputo were assigned to patrol sector A in vehicle § 87(2)(b). § 87(2)(b) viewed a photo array on March 22, 2007, and identified Sgt. Fischer as the desk sergeant, § 87(2)(g) and identified PO Morales as the officer he thought was “Sgt. Dumaro.” § 87(2)(b) described “Sgt. Dumaro” as a short male in his 40s who was wearing eyeglasses. PO Morales, who wore eyeglasses to his CCRB interview on June 21, 2007, is 5’5 and § 87(2)(b) -years-old. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Further, PO Morales was identified as the officer who summonsed § 87(2)(b) from a copy of summons #§ 87(2)(b)

Officer Statements:

PO Eliseo Morales

PO Eliseo Morales was interviewed at the CCRB on March 1, 2007 by Inv. LaRochelle and on June 21, 2007 by Inv. Hudson (Enclosure 11A-E). PO Morales stated that on November 27, 2006, he worked from 1500x2335, was dressed in uniform, and was the driver for the patrol supervisor, Sergeant Barbara Fischer. PO Morales stated that Sgt. Fischer returned to the stationhouse to relieve the desk officer at an unspecified time in the evening and that he relieved the person who was working stationhouse security. He had no memo book entries regarding the incident. At 10:30PM on November 27, 2006, § 87(2)(b) came into the 75th Precinct stationhouse. Sgt. Barbara Fischer was sitting at the desk the entire time and PO Morales did not recall her interacting with § 87(2)(b) at all that day. The “irate” § 87(2)(b) informed PO Morales that he “just came out of jail” because his tenant made an accusation against him. § 87(2)(b) told him that PO Javier Munoz and PO Jason Caputo had previously gone to the building he manages and arrested him [in May 2006]. PO Morales stated during his interview that he believed § 87(2)(b) wanted to make a complaint in retaliation against PO Munoz and PO Caputo. He told § 87(2)(b) that he could not file the complaint as retaliation against police officers just because he was upset that he was arrested. § 87(2)(b) told PO Morales, “The reason you guys are getting killed out there is because you [police officers] don’t know how to do your jobs,” and, “The only reason you don’t want to take a report is because you’re Puerto Rican.” PO Morales informed § 87(2)(b) that he was not Puerto Rican but “Spanish from Spain.” § 87(2)(b) then accused PO Morales of not taking his complaint because he was Jewish. PO Morales again informed § 87(2)(b) that he could make a report as long as it was not based on “a vendetta” against officers for arresting him. § 87(2)(b) remained “irate” through the entire conversation, which took place in front of numerous civilians. PO Morales noted that the civilians started to “back up” because § 87(2)(b) was being loud.

PO Morales told § 87(2)(b) to leave because he was being loud. § 87(2)(b) asked, “What are you going to do, are you going to arrest me?” PO Morales told § 87(2)(b) to leave because he was acting disorderly. When § 87(2)(b) did not leave, PO Morales asked for his identification and he provided his passport. PO Morales issued him a § 87(2)(a) 160.50 summons. PO Morales never frisked § 87(2)(b) nor did he reach into any of § 87(2)(b)’s pockets. No officer made physical contact with § 87(2)(b) or physically remove § 87(2)(b) from the precinct. PO Morales followed § 87(2)(b) out of the stationhouse as he exited, and added that § 87(2)(b) was “upset, yelling out stuff.” Neither he nor any other officers told § 87(2)(b) “You’re never going to come back to this precinct to file another complaint again. It’s private property, next time I see your face over here you’re going to go to jail.” PO Morales denied cursing at § 87(2)(b) and denied making remarks to him based on the fact that he is Jewish. He did not call § 87(2)(b) a “Jewish ass-licking person,” a “Jewish prick/fuck/landlord,” or a “Jewish asshole.” He could not remember if PO Munoz or PO Caputo were present in the stationhouse at the time of the incident.

Sgt. Barbara Fischer

Sergeant Barbara Fischer was interviewed at the CCRB on June 21, 2007 (Enclosure 13A-B). She stated that on November 27, 2006, she worked the hours of 1450x2347 and was the desk officer. She was dressed in uniform and had no memo book entries regarding the incident. At 10:30 PM on November 27, 2006, § 87(2)(b) came into the 75th Precinct stationhouse alone. He claimed that he was recently “wrongfully” arrested regarding a landlord tenant dispute. § 87(2)(b) wanted to file a report to have the other person arrested, which appeared to Sgt. Fischer to be retaliatory. Sgt. Fischer had never seen § 87(2)(b) before. She and PO Eliseo Morales told § 87(2)(b) that he could not make the report because the situation needed to be resolved at landlord tenant court. § 87(2)(b) became irate, saying, “You fucking people, if I were black or Hispanic you would take my report.” § 87(2)(b) told PO

Morales, "If I were Puerto Rican, like you." However, Sgt. Fischer stated that PO Morales is not Puerto Rican. Because § 87(2)(b) had no other business at the stationhouse other than wanting to make the report, he no longer needed to be there. Sgt. Fischer told § 87(2)(b) to leave three times and PO Morales told him to leave twice. Three or four other civilians were waiting inside the lobby, watching § 87(2)(b). Sgt. Fischer told PO Morales to issue § 87(2)(b) a summons § 87(2)(g). PO Morales asked § 87(2)(b) for identification, which was provided after § 87(2)(b) said, "This is fucking crazy!" § 87(2)(b) ripped the summons out of PO Morales' hand and left the stationhouse at approximately 10:40 PM.

Sgt. Fischer did not remember seeing PO Caputo or PO Munoz at the stationhouse while § 87(2)(b) was there and stated that she and PO Morales were the only officers who interacted with § 87(2)(b). She did not hear any officers curse at § 87(2)(b) or make remarks based on the fact that he is Jewish. § 87(2)(b) was wearing a kippah (also known as a yarmulke) at the time of the incident, but he never brought up the fact that he is Jewish. Sgt. Fischer did not hear any officers threaten to arrest § 87(2)(b). She did not see any officers frisk, search, or use physical force against him.

PO Javier Munoz

PO Munoz was interviewed at the CCRB on February 13, 2007 (Enclosure 15A-B). He stated that on November 27, 2006, he worked from 3:00PM to 11:35PM and was assigned to patrol sector A. He was partnered with PO Jason Caputo and assigned to RMP § 87(2)(e), § 87(2)(f). Entries in PO Munoz's memo book for the time period around the incident are as follows: § 87(2)(b)

At 10:30PM on November 27, 2006, PO Munoz was in the 75th Precinct Stationhouse with PO Caputo, working on a missing person report. On his way to make photocopies, he walked past § 87(2)(b) who was in the lobby area trying to file a report. § 87(2)(b) then entered into a verbal dispute with the desk sergeant, Sergeant Barbara Fischer. PO Munoz did not hear the entire interaction between Sgt. Fischer and § 87(2)(b) but did remember it "getting loud" in the area where they were talking. He heard a couple of officers ask § 87(2)(b) to leave the stationhouse. PO Munoz identified PO Maria Catalano as the telephone switchboard operator and PO Eliseo Morales as the assistant desk officer that day. He said that Sgt. Fischer, PO Catalano and PO Morales escorted § 87(2)(b) escorted § 87(2)(b) the five feet from the telephone switchboard desk back out into the lobby and then out of the precinct. PO Munoz did not witness § 87(2)(b) being frisked or searched, nor did he engage in conversation with § 87(2)(b)

§ 87(2)(b)

PO Munoz did not call § 87(2)(b) a "dirty fucking Jewish landlord," or a "slumlord." He denied saying anything to § 87(2)(b) having to do with Sgt. Fischer. PO Munoz denied saying or hearing any other officer tell him, "You got what you deserved and I'm going to get you again" in reference to the previous arrest. No officer, including PO Munoz, called § 87(2)(b) a "Jewish ass licking person," a "prick" or a "fuck," or made any sort of comment about § 87(2)(b) being Jewish.

Additional Officer Statements

PO Jason Caputo was interviewed at the CCRB on February 16, 2007 by Inv. LaRochelle and June 4, 2007 by Inv. Hudson (Enclosure 17A-D). PO Caputo stated that on the date of incident, he was typing a missing person report in the "124" room, which is located towards the rear of the precinct. PO Munoz, his partner that day, was in and out of the room making photocopies and telephone calls. PO Caputo did not see § 87(2)(b) on November 27, 2006, § 87(2)(b). PO Caputo did not hear any yelling while he was filling out his reports. He denied telling § 87(2)(b) "Get the fuck out of here you Jewish fucking slumlord." He did not ask § 87(2)(b) "What kind of animal are you? You're treating [the tenant] like an animal."

PO Maria Catalano was interviewed at the CCRB on June 4, 2007 (Enclosure 18A-B). She did not recall the incident on November 27, 2006 and after viewing a photocopy of § 87(2)(b)'s driver's license, she stated that she did not recall ever seeing § 87(2)(b).

Police Documents:

Summons

PO Morales issued § 87(2)(b) summons #§ 87(2)(b) for § 87(2)(a) 160.50

Status of Summons

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Arrest Report (Enclosure 20A-E)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant's Criminal Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant's CCRB History (Enclosure 4)

§ 87(2)(b) has filed two other complaints with the CCRB. § 87(2)(b)

Officer's CCRB Histories (Enclosures 1-3)

PO Eliseo Morales, a fifteen year member of the NYPD, PO Javier Munoz, a three year member of the NYPD, and PO Jason Caputo, also a three year member of the NYPD, have not been the subjects of any substantiated CCRB allegations.

Conclusions and Recommendations

Undisputed Facts

§ 87(2)(b) went to the 75th Precinct stationhouse to file a complaint, where he interacted with officers and was issued a summons § 87(2)(a) 160.50

Facts in Dispute

§ 87(2)(b), § 87(2)(g)

Assessment of Evidence

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b), § 87(2)(g)

PO Morales and Sergeant Fischer § 87(2)(g) They stated that § 87(2)(b) was at the 75th Precinct to file a report, although PO Morales said the report was retaliation against police officers and Sgt. Fischer said it was a complaint against a tenant who had § 87(2)(b) arrested. PO Morales claimed that Sgt. Fischer did not interact with § 87(2)(b) at all. However, Sgt. Fischer stated that she and PO Morales were the only two officers who interacted with § 87(2)(b) and that they told him to leave a total of five times, once it was evident he had no further business there. Both officers described § 87(2)(b) as “irate,” being loud and cursing, and claimed he accused them of not taking his complaint because he was not Hispanic. Other civilians were present and watching § 87(2)(b). However, § 87(2)(b) claimed that he was speaking in a quiet voice and that there were no other civilians in the stationhouse. According to PO Morales and Sgt. Fischer, § 87(2)(b) provided his identification and left after receiving the § 87(2)(a) 160.50 summons. § 87(2)(b) on the other hand, claimed that he was walking out of the stationhouse when PO Morales shoved him against the wall and demanded his identification.

§ 87(2)(g) While on his way to make photocopies PO Munoz saw § 87(2)(b) but he denied any interaction between himself, PO Caputo, and § 87(2)(b) § 87(2)(g) PO Munoz denied hearing what Sgt. Fischer and § 87(2)(b) were talking about but heard it “getting loud” and heard officers ask § 87(2)(b) to leave the stationhouse.

§ 87(2)(b), § 87(2)(g)

PO Morales, Sgt. Fischer, and PO Munoz denied seeing § 87(2)(b) and PO Caputo interact that day. § 87(2)(b), § 87(2)(g)

Allegations Not Pleaded

When § 87(2)(b) initially filed the complaint with the CCRB, he alleged that officers strip-searched him at the 75th Precinct stationhouse. § 87(2)(g)

§ 87(2)(b) alleged to IAB that on November 27, 2006, PO Munoz physically threw him out of the stationhouse. § 87(2)(b), § 87(2)(g)

During his telephone statement on November 29, 2006, § 87(2)(b) alleged that PO Caputo called him a “dirty landlord” on either March 10 or March 15, 2007. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) claimed that on May 25, 2006, PO Caputo and PO Munoz called him “a dirty Jewish slumlord” and PO Caputo told him, “You’re going to jail tonight, you dirty landlord. You’re going to get your lesson and spend the longest time in jail.” § 87(2)(b), § 87(2)(g)

During his interview on December 6, 2006, § 87(2)(b) alleged that officers pushed him into the stationhouse lobby. § 87(2)(g)

Also during his formal interview, § 87(2)(b) alleged that PO Morales threatened to issue him a summons if he did not leave the stationhouse. When § 87(2)(b) did not provide his identification, PO Morales threatened to arrest him. § 87(2)(b), § 87(2)(g)

Allegation A: PO Javier Munoz spoke rudely to § 87(2)(b)

Allegation D: PO Javier Munoz threatened to arrest § 87(2)(b)

Allegation E: PO Javier Munoz made remarks to § 87(2)(b) based upon religion.

§ 87(2)(b) alleged that on November 27, 2006, he was speaking to Sgt. Barbara Fischer when PO Javier Munoz told him to “watch [his] fucking mouth.” § 87(2)(b), § 87(2)(g)

Allegation B: PO Jason Caputo made remarks to § 87(2)(b) based upon religion.

Allegation C: PO Jason Caputo spoke rudely to § 87(2)(b)

§ 87(2)(b) also alleged that PO Jason Caputo told him, “Get the fuck out of here, you Jewish fucking slumlord” and asked him, “What kind of animal are you? You’re treating [a tenant] like an animal. You’re going to get paid back.” PO Caputo denied seeing, speaking to, or interacting with § 87(2)(b) on November 27, 2006. When § 87(2)(b) was first interviewed at the CCRB, he made no allegations against PO Caputo and did not claim that PO Caputo said anything to him. Instead, he made these allegations when viewing a photo array approximately three months after the formal interview. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation F: PO Eliseo Morales made remarks to § 87(2)(b) based upon religion.

§ 87(2)(b) alleged that on November 27, 2006, PO Morales called him a “Jewish ass licking person” and a “Jewish prick, fuck, and landlord.” In other statements he claimed that PO Morales called him a “Jewish ass licker” and a “Jewish asshole.” PO Morales denied making such remarks to § 87(2)(b) and stated that § 87(2)(b) accused him of not taking his complaint because he is Jewish. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation G: PO Eliseo Morales used physical force against § 87(2)(b)

§ 87(2)(b) also alleged that PO Morales shoved him against a wall when he was walking away, before being asked to provide his identification. § 87(2)(b) later claimed that PO Morales shoved him against a wall after obtaining the identification, frisking, and searching him. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation H: PO Eliseo Morales frisked § 87(2)(b)

Allegation I: PO Eliseo Morales searched § 87(2)(b)

§ 87(2)(b) further alleged that on November 27, 2006, PO Morales frisked him before reaching into his left pocket to remove his passport. By his own statement, § 87(2)(b) did not immediately provide identification, asking, “What does that have to do with why I’m being thrown out of the precinct?” PO Morales claimed that § 87(2)(b) provided his ID when asked, § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation J: PO Eliseo Morales threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that on November 27, 2006, PO Morales told him “never to come back to the precinct again” or else he would be arrested. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) He claimed that unspecified officers told him “never to come back again” to file a complaint or else he would be arrested and then claimed that a white male officer in his 20s told him, “You’re never going to come back to this precinct to file another complaint again. It’s private property, next time I see your face over here you’re going to go to jail.” § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: